

ASCII MASTER FLOW – PANEL 1/9: NCRWC identity, mandate and constitutional boundary

ROOT QUESTION

How can constitutional performance be reviewed without claiming constituent power?

2000 Government resolution -> temporary executive advisory commission.

Justice M.N. Venkatachaliah -> chair | 11 members | report submitted in 2002.

MANDATE

review fifty years of working -> effective governance + socio-economic development.

BOUNDARY

parliamentary democracy + basic structure preserved.

VERDICT

review of working != rewriting the Constitution.

ASCII MASTER FLOW – PANEL 2/9: Consultation and institutional identity firewall

CONSULTATION

papers + expert studies + public responses + thematic deliberation -> advisory report.

CONSTITUENT ASSEMBLY -> framed Constitution.

PARLIAMENT/ART 368 -> amends through constitutional procedure.

LAW COMMISSION -> law-reform reports.

SARKARIA/PUNCHHI -> Centre-State review.

NCRWC -> comprehensive working review, no constituent authority.

TRAP

expertise and consultation create persuasion, not legal force.

ASCII MASTER FLOW – PANEL 3/9: Working of the Constitution: text to lived performance

TEXT

Articles + Parts + Schedules

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INSTITUTIONS

Parliament + executive + courts + federal units + bodies

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PRACTICE

conventions + parties + administration + political incentives

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OUTCOMES

rights + accountability + deliberation + federal trust + remedies.

Kesavananda Bharati (1973) -> structural boundary.

Minerva Mills (1980) -> limited amendment + rights-DPSP harmony.

ASCII MASTER FLOW – PANEL 4/9: Recommendation clusters without law-status contamination

RIGHTS / DPSP / DUTIES

new rights, stronger implementation and proposed duties.

ELECTIONS / PARTIES

criminalisation, finance, ECI selection, party law and anti-defection.

PARLIAMENT / EXECUTIVE / ADMINISTRATION

sittings, committees, privileges, ministry size, civil services and integrity.

JUDICIARY / FEDERALISM / LOCAL GOVERNMENT

appointments, access, Governor, Art 356, councils and devolution.

STATUS

every node = NCRWC recommendation until separately enacted.

ASCII MASTER FLOW – PANEL 5/9: Implementation audit: exact, modified, similar or pending

PROPOSAL -> LATER INSTRUMENT -> WORDING -> LEGAL EFFECT -> VERDICT

10% ministry ceiling

-> 91st Amendment (2003) uses 15% -> modified related reform, not exact adoption.

judicial commission

-> NJAC enacted 2014, invalidated 2015 -> not current NCRWC design.

party law + narrow whip

-> no comprehensive enactment -> substantially pending.

disaster to Concurrent List

-> Disaster Management Act 2005, no List transfer -> statutory response, not adoption.

RULE

chronology + similarity != proven implementation.

ASCII MASTER FLOW – PANEL 6/9: Accountability, federalism and legislative practice

ACCOUNTABILITY

elections | confidence | committees | CAG | transparency | reasons | judicial review.

LEGISLATURE

sitting time -> scrutiny -> delegated law -> opposition -> financial control.

FEDERAL PRACTICE

consultation -> councils -> Governor restraint -> floor test -> negotiated implementation.

S.R. Bommai (1994) -> federal and secular structural enforcement.

TRAP

majority strength or coalition form does not itself prove good constitutional working.

ASCII MASTER FLOW – PANEL 7/9: Constitutional morality and rights enforcement

CONSTITUTIONAL MORALITY

text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017)

privacy + dignity in modern governance.

Navtej Singh Johar v. Union of India (2018)

constitutional morality + transformative rights.

RIGHTS WORKING

guarantee -> institution -> affordable remedy -> compliance -> public justification.

LIMIT

morality is not personal preference; later cases are not NCRWC implementation evidence.

ASCII MASTER FLOW – PANEL 8/9: Reform-method ladder and feasibility test

DIAGNOSE

text gap? convention failure? capacity deficit? incentive failure? remedy gap?

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+-- practice/convention repair

+-- executive rule or capacity

+-- ordinary legislation

+-- Article 368 amendment

|

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TEST

basic structure + rights + federalism + democratic legitimacy

+ finance + implementation + review.

VERDICT

use the least legally sufficient and institutionally workable route.

ASCII MASTER FLOW – PANEL 9/9: UPSC synthesis: commission report to constitutional answer

PRELIMS FIREWALL

2000 resolution | Venkatachaliah | 11 members | 2002 report
| advisory | review, not rewrite | recommendations, not law.

MAINS SPINE

identity -> mandate -> working beyond text -> recommendation clusters
-> implementation audit -> morality/accountability/federal practice -> reform ladder.

PYQ ROUTE

constitutional morality | electoral reform | judicial accountability | basic structure.

CONCLUSION

NCRWC is a diagnostic reform menu subject to constitutional route and present-law verification.